

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-033
Amendments to Title 17 of the Chickasaw Nation Code
(Offenses and Penalties)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for offenses and penalties and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 4, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-402.12

POSSESSION OF DRUG PARAPHERNALIA.

A. It shall be unlawful to deliver, sell, possess, or manufacture drug paraphernalia knowing, or under circumstances where one reasonably should know, that it will be used to illegally plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise unlawfully introduce into the human body a Controlled Dangerous Substance.

B. Possession of Drug Paraphernalia shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 5, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-501.3**DOMESTIC VIOLENCE.**

* * *

H. Domestic Violence as defined in subsection A or subsection B of this section that results in serious bodily injury to the victim shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 8, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-800.3**DRIVING UNDER THE INFLUENCE.**

* * *

G. Driving under the Influence that results in serious bodily injury to a person shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both such fine and imprisonment.

SECTION 17-800.6**LEAVING THE SCENE OF AN ACCIDENT INVOLVING INJURY OR DEATH.**

A. It shall be unlawful to willfully or maliciously leave the scene of a motor vehicle accident that resulted in bodily injury or death to avoid detection or prosecution.

B. Leaving the scene of an accident involving injury or death shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-800.7**LEAVING THE SCENE OF AN ACCIDENT INVOLVING DAMAGE TO PROPERTY.**

A. It shall be unlawful to willfully or maliciously leave the scene of a motor vehicle accident that resulted in damage to property, another motor vehicle, or fixtures upon a highway, to avoid detection or prosecution.

B. Leaving the scene of an accident involving damage to property shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that these additions to the Chickasaw Nation Code shall be effective as of September 1, 2021.

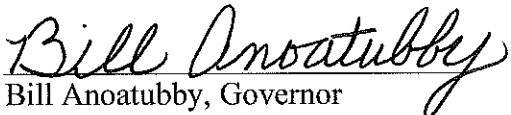
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 16, 2021, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 16 2021

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Explanation:

This resolution adds three new offenses and enhances sentencing for two additional offenses.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature